

		Court's file indicating MP has complied with the Court's order. As such, the Motion is taken off calendar.
102	Albert vs. Microsoft Corporation 25-01524620	Demurrer to First Amended Complaint Demurrers to the 1st, 2nd, 3rd, 4th, 5th and 6th causes of action of plaintiff Stacy Alberts First Amended Complaint are SUSTAINED with leave to amend. This ruling is made on the ground that plaintiff did not file her administrative complaint with the California Civil Rights Department ["CRD"] within three years from her resignation as required by Government Code §12960(e)(3). The Court makes no ruling on other grounds for demurrer raised by Microsoft. The judicially noticed documents filed in this case establish that Ms. Albert resigned from her employer Microsoft on January 20, 2021. She alleges that she did so because she was constructively terminated. That was the date of accrual of all causes of action alleged. Judicially noticed documents also establish that Ms. Albert did not file her administrative complaint with the CRD until 07/08/25, about a year and a half after the statutory deadline. Thus, as it stands before the Court at this time, the only issue is whether a basis for tolling the statute of limitations applies. The Court concludes that the continuing violation doctrine does not because it is inapplicable on these facts. The only doctrine that may operate to extend the time to file with the CRD is the doctrine of equitable tolling. The three-year deadline for filing CRD charges is subject to equitable tolling. [<i>Downs v. Department of Water & Power of City of Los Angeles</i> (1997) 58 CA4th 1093, 1102] Under CA law, the application of equitable tolling applies where a plaintiff who has a choice of legal remedies to pursue one remedy without simultaneously pursuing

another remedy. [*Acuna v. San Diego Gas & Electric Co.* (2013) 217 Cal.App.4th 1402, 1416] Informal negotiations or discussions between an employer and employee do not toll a statute of limitations under the equitable tolling doctrine. [See, 65 *Butterfield v. Chicago Title Ins. Co.* (1999) 70 Cal.App.4th 1047, 1063] In paragraph 11 of her FAC, Ms. Albert invokes the doctrine of equitable tolling, but alleges no facts to support its application.

The foregoing analysis applies the 1st, 2nd, 3rd, 5th and 6th causes of action which pertain to claims which rely upon the Fair Employment Act. With respect to the 4th cause of action for Violation of Labor Code §1102.5, no administrative claim was required. Ms. Albert had three years under CCP §338 to file this lawsuit. [*Minor v. FedEx Office & Print Servs.* (N.D. Cal. 2016) 182 F. Supp. 3d 966, 988] Facts supporting the application of equitable tolling may be alleged, however.

With respect to claims against Microsoft only, plaintiff is granted 10 days' leave to amend. Both parties are counseled that the only issue the Court will consider if a Second Amendment is filed and is challenged by a demurrer will be whether facts supporting the application of equitable tolling have been alleged. The Court will not consider arguments that have already been made in the current papers. Those arguments should not be repeated.

Defendant Tim Ryder's Demurrers to the 1st, 2nd, 3rd, 4th, 5th and 6th causes of action of plaintiff Stacy Alberts First Amended Complaint are SUSTAINED without leave to amend.

As a matter of law, Mr. Ryder cannot be personally liable under any of the causes of action alleged. [See, *Reno v. Baird* (1998) 18 Cal.4th 640, 647; *Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 65-67; *Jones v. Lodge at Torrey Pines Partnership* (2008) 42 Cal.th 1158, 1160; and *Dawson v. Caregard Warranty Service, Inc.* (C.D. Cal. 2024 WL 661198)